

Opinion of the Court

A focus on ownership and rights to trust assets also featured in the Court’s ruling that a trustee’s in-state residence can provide the basis for a State to tax trust assets. In *Greenough*, the Court explained that the relationship between trust assets and a trustee is akin to the “close relationship between” other types of intangible property and the owners of such property. 331 U. S., at 493. The trustee is “the owner of [a] legal interest in” the trust property, and in that capacity he can incur obligations, become personally liable for contracts for the trust, or have specific performance ordered against him. *Id.*, at 494. At the same time, the trustee can turn to his home State for “benefit and protection through its law,” *id.*, at 496, for instance, by resorting to the State’s courts to resolve issues related to trust administration or to enforce trust claims, *id.*, at 495. A State therefore may tax a resident trustee on his interest in a share of trust assets. *Id.*, at 498.

In sum, when assessing a state tax premised on the in-state residency of a constituent of a trust—whether beneficiary, settlor, or trustee—the Due Process Clause demands attention to the particular relationship between the resident and the trust assets that the State seeks to tax. Because each individual fulfills different functions in the creation and continuation of the trust, the specific features of that relationship sufficient to sustain a tax may vary depending on whether the resident is a settlor, beneficiary, or trustee. When a tax is premised on the in-state residence of a beneficiary, the Constitution requires that the resident have some degree of possession, control, or enjoyment of the trust property or a right to receive that property before the State can tax the asset. Cf. *Safe Deposit*, 280 U. S., at 91–92.⁸ Other-

Guaranty Trust Co. v. Virginia, 305 U. S. 19 (1938), in the beneficiary context.

⁸ As explained below, we hold that the Kaestner Trust beneficiaries do not have the requisite relationship with the Trust property to justify the State’s tax. We do not decide what degree of possession, control, or enjoyment would be sufficient to support taxation.

wise, the State's relationship to the object of its tax is too attenuated to create the "minimum connection" that the Constitution requires. See *Quill*, 504 U. S., at 306.

B

Applying these principles here, we conclude that the residence of the Kaestner Trust beneficiaries in North Carolina alone does not supply the minimum connection necessary to sustain the State's tax.

First, the beneficiaries did not receive any income from the trust during the years in question. If they had, such income would have been taxable. See *Maguire*, 253 U. S., at 17; *Guaranty Trust Co.*, 305 U. S., at 23.

Second, the beneficiaries had no right to demand trust income or otherwise control, possess, or enjoy the trust assets in the tax years at issue. The decision of when, whether, and to whom the trustee would distribute the trust's assets was left to the trustee's "absolute discretion." Art. I, § 1.2(a), App. 46–47. In fact, the Trust agreement explicitly authorized the trustee to distribute funds to one beneficiary to "the exclusion of other[s]," with the effect of cutting one or more beneficiaries out of the Trust. Art. I, § 1.4(a), *id.*, at 50. The agreement also authorized the trustee, not the beneficiaries, to make investment decisions regarding Trust property. Art. V, § 5.2, *id.*, at 55–60. The Trust agreement prohibited the beneficiaries from assigning to another person any right they might have to the Trust property, Art. XII, *id.*, at 70–71, thus making the beneficiaries' interest less like "a potential source of wealth [that] was property in [their] hands," *Curry*, 307 U. S., at 370–371.⁹

⁹ We do not address whether a beneficiary's ability to assign a potential interest in income from a trust would afford that beneficiary sufficient control or possession over, or enjoyment of, the property to justify taxation based solely on his or her in-state residence.

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To be sure, the Kaestner Trust agreement also instructed the trustee to view the trust “as a family asset and to be liberal in the exercise of the discretion conferred,” suggesting that the trustee was to make distributions generously with the goal of “meet[ing] the needs of the Beneficiaries” in various respects. Art. I, § 1.4(c), App. 51. And the trustee of a discretionary trust has a fiduciary duty not to “act in bad faith or for some purpose or motive other than to accomplish the purposes of the discretionary power.” 2 Restatement (Third) of Trusts § 50, Comment *c*, p. 262 (2001). But by reserving sole discretion to the trustee, the Trust agreement still deprived Kaestner and her children of any entitlement to demand distributions or to direct the use of the Trust assets in their favor in the years in question.

Third, not only were Kaestner and her children unable to demand distributions in the tax years at issue, but they also could not count on necessarily receiving any specific amount of income from the Trust in the future. Although the Trust agreement provided for the Trust to terminate in 2009 (on Kaestner’s 40th birthday) and to distribute assets to Kaestner, Art. I, § 1.2(c)(1), App. 47, New York law allowed the trustee to roll over the trust assets into a new trust rather than terminating it, N. Y. Est., Powers & Trusts § 10–6.6(b). Here, the trustee did just that. 371 N. C., at 135, 814 S. E. 2d, at 45.¹⁰

¹⁰ In light of these features, one might characterize the interests of the beneficiaries as “contingent” on the exercise of the trustee’s discretion. See *Fondren v. Commissioner*, 324 U. S. 18, 21 (1945) (describing “the exercise of the trustee’s discretion” as an example of a contingency); see also *United States v. O’Malley*, 383 U. S. 627, 631 (1966) (describing a grantor’s power to add income to the trust principal instead of distributing it and “thereby den[y] to the beneficiaries the privilege of immediate enjoyment and conditio[n] their eventual enjoyment upon surviving the termination of the trust”); *Commissioner v. Estate of Holmes*, 326 U. S. 480, 487 (1946) (the termination of a contingency changes “the mere prospect or possibility, even the probability, that one may have [enjoyment of prop-

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Like the beneficiaries in *Safe Deposit*, then, Kaestner and her children had no right to “control or posses[s]” the trust assets “or to receive income therefrom.” 280 U. S., at 91. The beneficiaries received no income from the Trust, had no right to demand income from the Trust, and had no assurance that they would eventually receive a specific share of Trust income. Given these features of the Trust, the beneficiaries’ residence cannot, consistent with due process, serve as the sole basis for North Carolina’s tax on trust income.¹¹

erty] at some uncertain future time or perhaps not at all” into a “present substantial benefit”). We have no occasion to address, and thus reserve for another day, whether a different result would follow if the beneficiaries were certain to receive funds in the future. See, *e. g.*, Cal. Rev. & Tax. Code Ann. § 17742(a) (West 2019); *Commonwealth v. Stewart*, 338 Pa. 9, 16–19, 12 A. 2d 444, 448–449 (1940) (upholding a tax on the equitable interest of a beneficiary who had “a right to the income from [a] trust for life”), *aff’d*, 312 U. S. 649 (1941).

¹¹ Because the reasoning above resolves this case in the Trust’s favor, it is unnecessary to reach the Trust’s broader argument that the trustee’s contacts alone determine the State’s power over the Trust. Brief for Respondent 23–30. The Trust relies for this proposition on *Hanson v. Denckla*, 357 U. S. 235 (1958), which held that a Florida court lacked jurisdiction to adjudicate the validity of a trust agreement even though the trust settlor and most of the trust beneficiaries were domiciled in Florida. *Id.*, at 254. The problem was that Florida law made the trustee “an indispensable party over whom the court [had to] acquire jurisdiction” before resolving a trust’s validity, and the trustee was a nonresident. *Ibid.* In deciding that the Florida courts lacked jurisdiction over the proceeding, the Court rejected the relevance of the trust beneficiaries’ residence and focused instead on the “acts of the trustee” himself, which the Court found insufficient to support jurisdiction. *Ibid.*

The State counters that *Hanson* is inapposite because the State’s tax applies to the trust rather than to the trustee and because *Hanson* arose in the context of adjudicative jurisdiction rather than tax jurisdiction. Brief for Petitioner 21, n. 9; Reply Brief 16–17.

There is no need to resolve the parties’ dueling interpretations of *Hanson*. Even if beneficiary contacts—such as residence—could be sufficient in some circumstances to support North Carolina’s power to impose this tax, the residence alone of the Kaestner Trust beneficiaries cannot do so for the reasons given above.

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IV

The State’s counterarguments do not save its tax.

First, the State interprets *Greenough* as standing for the broad proposition that “a trust and its constituents” are always “inextricably intertwined.” Brief for Petitioner 26. Because trustee residence supports state taxation, the State contends, so too must beneficiary residence. The State emphasizes that beneficiaries are essential to a trust and have an “equitable interest” in its assets. *Greenough*, 331 U. S., at 494. In *Stone v. White*, 301 U. S. 532 (1937), the State notes, the Court refused to “shut its eyes to the fact” that a suit to recover taxes from a trust was in reality a suit regarding “the beneficiary’s money.” *Id.*, at 535. The State also argues that its tax is at least as fair as the tax in *Greenough* because the Trust benefits from North Carolina law by way of the beneficiaries, who enjoy secure banks to facilitate asset transfers and also partake of services (such as subsidized public education) that obviate the need to make distributions (for example, to fund beneficiaries’ educations). Brief for Petitioner 30–33.

The State’s argument fails to grapple with the wide variation in beneficiaries’ interests. There is no doubt that a beneficiary is central to the trust relationship, and beneficiaries are commonly understood to hold “beneficial interests (or ‘equitable title’) in the trust property,” 2 Restatement (Third) of Trusts § 42, Comment *a*, at 186. In some cases the relationship between beneficiaries and trust assets is so close as to be beyond separation. In *Stone*, for instance, the beneficiary had already received the trust income on which the government sought to recover tax. See 301 U. S., at 533. But, depending on the trust agreement, a beneficiary may have only a “future interest,” an interest that is “subject to conditions,” or an interest that is controlled by a trustee’s discretionary decisions. 2 Restatement (Third) of Trusts § 49, Comment *b*, at 243. By contrast, in *Greenough*, the requisite connection with the State arose from a legal inter-

est that necessarily carried with it predictable responsibilities and liabilities. See 331 U.S., at 494. The different forms of beneficiary interests counsels against adopting the categorical rule that the State urges.

Second, the State argues that ruling in favor of the Trust will undermine numerous state taxation regimes. Tr. of Oral Arg. 8, 68; Brief for Petitioner 6, and n. 1. Today's ruling will have no such sweeping effect. North Carolina is one of a small handful of States that rely on beneficiary residency as a sole basis for trust taxation, and one of an even smaller number that will rely on the residency of beneficiaries regardless of whether the beneficiary is certain to receive trust assets.¹² Today's decision does not address state laws that consider the in-state residency of a beneficiary as one of a combination of factors, that turn on the residency of a settlor, or that rely only on the residency of noncontingent beneficiaries, see, *e.g.*, Cal. Rev. & Tax. Code Ann. § 17742(a).¹³ We express no opinion on the validity of such taxes.

¹² The State directs the Court's attention to 10 other state trust taxation statutes that also look to trust beneficiaries' in-state residency, see Brief for Petitioner 6, and n. 1, but 5 are unlike North Carolina's because they consider beneficiary residence only in combination with other factors, see Ala. Code § 40-18-1(33) (2011); Conn. Gen. Stat. § 12-701(a)(4) (2019 Cum. Supp.); Mo. Rev. Stat. §§ 143.331(2), (3) (2016); Ohio Rev. Code Ann. § 5747.01(I)(3) (Lexis Supp. 2019); R. I. Gen. Laws § 44-30-5(c) (2010). Of the remaining five statutes, it is not clear that the flexible tests employed in Montana and North Dakota permit reliance on beneficiary residence alone. See Mont. Admin. Rule 42.30.101(16) (2016); N. D. Admin. Code § 81-03-02.1-04(2) (2018). Similarly, Georgia's imposition of a tax on the sole basis of beneficiary residency is disputed. See Ga. Code Ann. § 48-7-22(a)(1)(C) (2017); Brief for Respondent 52, n. 20. Tennessee will be phasing out its income tax entirely by 2021. H. B. 534, 110th Gen. Assem., Reg. Sess. (2017) (enacted); see Tenn. Code Ann. § 67-2-110(a) (2013). That leaves California, which (unlike North Carolina) applies its tax on the basis of beneficiary residency only where the beneficiary is not contingent. Cal. Rev. & Tax. Code Ann. § 17742(a); see also n. 10, *supra*.

¹³ The Trust also raises no challenge to the practice known as throwback taxation, by which a State taxes accumulated income at the time it is actually distributed. See, *e.g.*, Cal. Rev. & Tax. Code Ann. § 17745(b).

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Finally, North Carolina urges that adopting the Trust’s position will lead to opportunistic gaming of state tax systems, noting that trust income nationally exceeded \$120 billion in 2014. See Brief for Petitioner 39, and n. 13. The State is concerned that a beneficiary in Kaestner’s position will delay taking distributions until she moves to a State with a lower level of taxation, thereby paying less tax on the funds she ultimately receives. See *id.*, at 40.

Though this possibility is understandably troubling to the State, it is by no means certain that it will regularly come to pass. First, the power to make distributions to Kaestner or her children resides with the trustee. When and whether to make distributions is not for Kaestner to decide, and in fact the trustee may distribute funds to Kaestner while she resides in North Carolina (or deny her distributions entirely). Second, we address only the circumstances in which a beneficiary receives no trust income, has no right to demand that income, and is uncertain necessarily to receive a specific share of that income. Settlers who create trusts in the future will have to weigh the potential tax benefits of such an arrangement against the costs to the trust beneficiaries of lesser control over trust assets. In any event, mere speculation about negative consequences cannot conjure the “minimum connection” missing between North Carolina and the object of its tax.

* * *

For the foregoing reasons, we affirm the judgment of the Supreme Court of North Carolina.

It is so ordered.

JUSTICE ALITO, with whom THE CHIEF JUSTICE and JUSTICE GORSUCH join, concurring.

I join the opinion of the Court because it properly concludes that North Carolina’s tenuous connection to the income earned by the trust is insufficient to permit the State to tax the trust’s income. Because this connection is unusually tenuous, the opinion of the Court is circumscribed. I write

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separately to make clear that the opinion of the Court merely applies our existing precedent and that its decision not to answer questions not presented by the facts of this case does not open for reconsideration any points resolved by our prior decisions.

* * *

Kimberley Rice Kaestner is the beneficiary of a trust established by her father. She is also a resident of North Carolina. Between 2005 and 2008, North Carolina required the trustee, who is a resident of Connecticut, to pay more than \$1.3 million in taxes on income earned by the assets in the trust. North Carolina levied this tax because of Kaestner’s residence within the State.

States have broad discretion to structure their tax systems. But, in a few narrow areas, the Federal Constitution imposes limits on that power. See, *e.g.*, *McCulloch v. Maryland*, 4 Wheat. 316 (1819); *Comptroller of Treasury of Md. v. Wynne*, 575 U. S. 542 (2015). The Due Process Clause creates one such limit. It imposes restrictions on the persons and property that a State can subject to its taxation authority. “The Due Process Clause ‘requires some definite link, some minimum connection, between a state and the person, property or transaction it seeks to tax.’” *Quill Corp. v. North Dakota*, 504 U. S. 298, 306 (1992) (quoting *Miller Brothers Co. v. Maryland*, 347 U. S. 340, 344–345 (1954)), overruled in part on other grounds by *South Dakota v. Wayfair, Inc.*, 585 U. S. 162 (2018). North Carolina assesses this tax against the trustee and calculates the tax based on the income earned by the trust. N. C. Gen. Stat. Ann. § 105–160.2 (2017). Therefore we must look at the connections between the assets held in trust and the State.

It is easy to identify a State’s connection with tangible assets. A tangible asset has a connection with the State in which it is located, and generally speaking, only that State has power to tax the asset. *Curry v. McCanless*, 307 U. S. 357, 364–365 (1939). Intangible assets—stocks, bonds, or

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other securities, for example—present a more difficult question.

In the case of intangible assets held in trust, we have previously asked whether a resident of the State imposing the tax has control, possession, or the enjoyment of the asset. See *Greenough v. Tax Assessors of Newport*, 331 U. S. 486, 493–495 (1947); *Curry, supra*, at 370–371; *Safe Deposit & Trust Co. of Baltimore v. Virginia*, 280 U. S. 83, 93–94 (1929); *Brooke v. Norfolk*, 277 U. S. 27, 28–29 (1928). Because a trustee is the legal owner of the trust assets and possesses the powers that accompany that status—power to manage the investments, to make and enforce contracts respecting the assets, to litigate on behalf of the trust, etc.—the trustee’s State of residence can tax the trust’s intangible assets. *Greenough, supra*, at 494, 498. Here, we are asked whether the connection between a beneficiary and a trust is sufficient to allow the beneficiary’s State of residence to tax the trust assets and the income they earn while the assets and income remain in the trust in another State. Two cases provide a clear answer.

In *Brooke*, Virginia assessed a tax on the assets of a trust whose beneficiary was a resident of Virginia. The trustee was not a resident of Virginia and administered the trust outside the Commonwealth. Under the terms of the trust, the beneficiary was entitled to all the income of the trust and had paid income taxes for the money that had been transferred to her. But the Court held that, despite the beneficiary’s present and ongoing right to receive income from the trust, Virginia could not impose taxes on the undistributed assets that remained within the trust because “the property is not within the State, does not belong to the petitioner and is not within her possession or control.” 277 U. S., at 29. Even though the beneficiary was entitled to and received income from the trust, we observed that “she [wa]s a stranger” to the assets within the trust because she lacked control, possession, or enjoyment of them. *Ibid.*

In *Safe Deposit*, Virginia again attempted to assess taxes on the intangible assets held in a trust whose trustee resided in Maryland. The beneficiaries were children who lived in Virginia. Under the terms of the trust, each child was entitled to one half of the trust's assets (both the original principal and the income earned over time) when the child reached the age of 25. Despite their entitlement to the entire corpus of the trust, the Court held that the beneficiaries' residence did not allow Virginia to tax the assets while they remained in trust. "[N]obody within Virginia has present right to [the assets'] control or possession, or to receive income therefrom, or to cause them to be brought physically within her borders." 280 U.S., at 91.* The beneficiaries' equitable ownership of the trust did not sufficiently connect the undistributed assets to Virginia as to allow taxation of the trust. The beneficiaries' equitable ownership yielded to the "established fact of legal ownership, actual presence and control elsewhere." *Id.*, at 92.

Here, as in *Brooke* and *Safe Deposit*, the resident beneficiary has neither control nor possession of the intangible assets in the trust. She does not enjoy the use of the trust assets. The trustee administers the trust and holds the trust assets outside the State of North Carolina. Under *Safe Deposit* and *Brooke*, that is sufficient to establish that North Carolina cannot tax the trust or the trustee on the intangible assets held by the trust.

* * *

The Due Process Clause requires a sufficient connection between an asset and a State before the State can tax the asset. For intangible assets held in trust, our precedents dictate that a resident beneficiary's control, possession, and

*Although the Court noted that no Virginian had a present right "to receive income therefrom," *Brooke*—where the beneficiary was entitled to and received income from the trust—suggests that even if the children had such a right, it would not, alone, justify taxing the trust corpus.

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ability to use or enjoy the asset are the core of the inquiry. The opinion of the Court rightly concludes that the assets in this trust and the trust's undistributed income cannot be taxed by North Carolina because the resident beneficiary lacks control, possession, or enjoyment of the trust assets. The Court's discussion of the peculiarities of this trust does not change the governing standard, nor does it alter the reasoning applied in our earlier cases. On that basis, I concur.

Syllabus

FLOWERS *v.* MISSISSIPPI

CERTIORARI TO THE SUPREME COURT OF MISSISSIPPI

No. 17–9572. Argued March 20, 2019—Decided June 21, 2019

Petitioner Curtis Flowers has been tried six separate times for the murder of four employees of a Mississippi furniture store. Flowers is black; three of the four victims were white. At the first two trials, the State used its peremptory strikes on all of the qualified black prospective jurors. In each case, the jury convicted Flowers and sentenced him to death, but the convictions were later reversed by the Mississippi Supreme Court based on prosecutorial misconduct. At the third trial, the State used all of its 15 peremptory strikes against black prospective jurors, and the jury convicted Flowers and sentenced him to death. The Mississippi Supreme Court reversed again, this time concluding that the State exercised its peremptory strikes on the basis of race in violation of *Batson v. Kentucky*, 476 U. S. 79. Flowers' fourth and fifth trials ended in mistrials. At the fourth, the State exercised 11 peremptory strikes—all against black prospective jurors. No available racial information exists about the prospective jurors in the fifth trial. At the sixth trial, the State exercised six peremptory strikes—five against black prospective jurors, allowing one black juror to be seated. Flowers again raised a *Batson* claim, but the trial court concluded that the State had offered race-neutral reasons for each of the five peremptory strikes. The jury convicted Flowers and sentenced him to death. The Mississippi Supreme Court affirmed. After this Court vacated that judgment and remanded in light of *Foster v. Chatman*, 578 U. S. 488, the Mississippi Supreme Court again upheld Flowers' conviction in a divided 5-to-4 decision. Justice King dissented on the *Batson* issue and was joined by two other Justices.

Held: All of the relevant facts and circumstances taken together establish that the trial court at Flowers' sixth trial committed clear error in concluding that the State's peremptory strike of black prospective juror Carolyn Wright was not motivated in substantial part by discriminatory intent. Pp. 293–316.

(a) Under *Batson*, once a prima facie case of discrimination has been shown by a defendant, the State must provide race-neutral reasons for its peremptory strikes. The trial judge then must determine whether the prosecutor's stated reasons were the actual reasons or instead were a pretext for discrimination. The *Batson* Court rejected four arguments. First, the *Batson* Court rejected the idea that a defendant must demonstrate a history of racially discriminatory strikes in order

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to make out a claim of race discrimination. Second, the *Batson* Court rejected the argument that a prosecutor could strike a black juror based on an assumption or belief that the black juror would favor a black defendant. Third, the *Batson* Court rejected the argument that race-based peremptories should be permissible because black, white, Asian, and Hispanic defendants and jurors were all “equally” subject to race-based discrimination. Fourth, the *Batson* Court rejected the argument that race-based peremptories are permissible because both the prosecution and defense could employ them in any individual case and in essence balance things out. Pp. 293–300.

(b) Four categories of evidence loom large in assessing the *Batson* issue here, where the State had a persistent pattern of striking black prospective jurors from Flowers’ first through his sixth trial. Pp. 301–315.

(1) A review of the history of the State’s peremptory strikes in Flowers’ first four trials strongly supports the conclusion that the State’s use of peremptory strikes in Flowers’ sixth trial was motivated in substantial part by discriminatory intent. The State tried to strike all 36 black prospective jurors over the course of the first four trials. And the state courts themselves concluded that the State had violated *Batson* on two separate occasions. The State’s relentless, determined effort to rid the jury of black individuals strongly suggests that the State wanted to try Flowers before a jury with as few black jurors as possible, and ideally before an all-white jury. Pp. 304–307.

(2) The State’s use of peremptory strikes in Flowers’ sixth trial followed the same pattern as the first four trials. P. 307.

(3) Disparate questioning can be probative of discriminatory intent. *Miller-El v. Cockrell*, 537 U. S. 322, 331–332, 344–345. Here, the State spent far more time questioning the black prospective jurors than the accepted white jurors—145 questions asked of 5 black prospective jurors and 12 questions asked of 11 white seated jurors. The record refutes the State’s explanation that it questioned black and white prospective jurors differently only because of differences in the jurors’ characteristics. Along with the historical evidence from the earlier trials, as well as the State’s striking of five of six black prospective jurors at the sixth trial, the dramatically disparate questioning and investigation of black prospective jurors and white prospective jurors at the sixth trial strongly suggest that the State was motivated in substantial part by a discriminatory intent. Pp. 307–311.

(4) Comparing prospective jurors who were struck and not struck can be an important step in determining whether a *Batson* violation occurred. See *Snyder v. Louisiana*, 552 U. S. 472, 483–484. Here, Carolyn Wright, a black prospective juror, was struck, the State says, in part because she knew several defense witnesses and had worked at

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Wal-Mart where Flowers' father also worked. But three white prospective jurors also knew many individuals involved in the case, and the State asked them no individual questions about their connections to witnesses. White prospective jurors also had relationships with members of Flowers' family, but the State did not ask them follow-up questions in order to explore the depth of those relationships. The State also incorrectly explained that it exercised a peremptory strike against Wright because she had worked with one of Flowers' sisters and made apparently incorrect statements to justify the strikes of other black prospective jurors. When considered with other evidence, a series of factually inaccurate explanations for striking black prospective jurors can be another clue showing discriminatory intent. The overall context here requires skepticism of the State's strike of Carolyn Wright. The trial court at Flowers' sixth trial committed clear error in concluding that the State's peremptory strike of black prospective juror Carolyn Wright was not motivated in substantial part by discriminatory intent. Pp. 311–315.

240 So. 3d 1082, reversed and remanded.

KAVANAUGH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, ALITO, SOTOMAYOR, and KAGAN, JJ., joined. ALITO, J., filed a concurring opinion, *post*, p. 316. THOMAS, J., filed a dissenting opinion, in which GORSUCH, J., joined as to Parts I, II, and III, *post*, p. 317.

Sheri Lynn Johnson argued the cause petitioner. With her on the briefs were *Keir M. Weyble* and *Alison Steiner*.

Jason Davis, Special Assistant Attorney General of Mississippi, argued the cause for respondent. With him on the briefs were *Jim Hood*, Attorney General, and *Brad Smith*, Special Assistant Attorney General.*

JUSTICE KAVANAUGH delivered the opinion of the Court.

In *Batson v. Kentucky*, 476 U. S. 79 (1986), this Court ruled that a State may not discriminate on the basis of race

*Briefs of *amici curiae* urging reversal were filed for Former Justice Department Officials by *Donald B. Verrilli, Jr.*, *Ginger D. Anders*, and *Christopher M. Lynch*; and for the NAACP Legal Defense & Educational Fund, Inc., by *Christopher Kemmitt*, *Sherrilyn A. Ifill*, *Janai S. Nelson*, and *Samuel Spital*.

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when exercising peremptory challenges against prospective jurors in a criminal trial.

In 1996, Curtis Flowers allegedly murdered four people in Winona, Mississippi. Flowers is black. He has been tried six separate times before a jury for murder. The same lead prosecutor represented the State in all six trials.

In the initial three trials, Flowers was convicted, but the Mississippi Supreme Court reversed each conviction. In the first trial, Flowers was convicted, but the Mississippi Supreme Court reversed the conviction due to “numerous instances of prosecutorial misconduct.” *Flowers v. State*, 773 So. 2d 309, 327 (2000). In the second trial, the trial court found that the prosecutor discriminated on the basis of race in the peremptory challenge of a black juror. The trial court seated the black juror. Flowers was then convicted, but the Mississippi Supreme Court again reversed the conviction because of prosecutorial misconduct at trial. In the third trial, Flowers was convicted, but the Mississippi Supreme Court yet again reversed the conviction, this time because the court concluded that the prosecutor had again discriminated against black prospective jurors in the jury selection process. The court’s lead opinion stated: “The instant case presents us with as strong a prima facie case of racial discrimination as we have ever seen in the context of a *Batson* challenge.” *Flowers v. State*, 947 So. 2d 910, 935 (2007). The opinion further stated that the “State engaged in racially discriminatory practices during the jury selection process” and that the “case evinces an effort by the State to exclude African-Americans from jury service.” *Id.*, at 937, 939.

The fourth and fifth trials of Flowers ended in mistrials due to hung juries.

In his sixth trial, which is the one at issue here, Flowers was convicted. The State struck five of the six black prospective jurors. On appeal, Flowers argued that the State again violated *Batson* in exercising peremptory strikes against black prospective jurors. In a divided 5-to-4 deci-

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sion, the Mississippi Supreme Court affirmed the conviction. We granted certiorari on the *Batson* question and now reverse. See 586 U. S. 985 (2018).

Four critical facts, taken together, require reversal. *First*, in the six trials combined, the State employed its peremptory challenges to strike 41 of the 42 black prospective jurors that it could have struck—a statistic that the State acknowledged at oral argument in this Court. Tr. of Oral Arg. 32. *Second*, in the most recent trial, the sixth trial, the State exercised peremptory strikes against five of the six black prospective jurors. *Third*, at the sixth trial, in an apparent effort to find pretextual reasons to strike black prospective jurors, the State engaged in dramatically disparate questioning of black and white prospective jurors. *Fourth*, the State then struck at least one black prospective juror, Carolyn Wright, who was similarly situated to white prospective jurors who were not struck by the State.

We need not and do not decide that any one of those four facts alone would require reversal. All that we need to decide, and all that we do decide, is that all of the relevant facts and circumstances taken together establish that the trial court committed clear error in concluding that the State’s peremptory strike of black prospective juror Carolyn Wright was not “motivated in substantial part by discriminatory intent.” *Foster v. Chatman*, 578 U. S. 488, 513 (2016) (internal quotation marks omitted). In reaching that conclusion, we break no new legal ground. We simply enforce and reinforce *Batson* by applying it to the extraordinary facts of this case.

We reverse the judgment of the Supreme Court of Mississippi, and we remand the case for further proceedings not inconsistent with this opinion.

I

The underlying events that gave rise to this case took place in Winona, Mississippi. Winona is a small town in

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northern Mississippi, just off I-55 almost halfway between Jackson and Memphis. The total population of Winona is about 5,000. The town is about 53 percent black and about 46 percent white.

In 1996, Bertha Tardy, Robert Golden, Derrick Stewart, and Carmen Rigby were murdered at the Tardy Furniture store in Winona. All four victims worked at the Tardy Furniture store. Three of the four victims were white; one was black. In 1997, the State charged Curtis Flowers with murder. Flowers is black. Since then, Flowers has been tried six separate times for the murders. In each of the first two trials, Flowers was tried for one individual murder. In each subsequent trial, Flowers was tried for all four of the murders together. The same state prosecutor tried Flowers each time. The prosecutor is white.

At Flowers' first trial, 36 prospective jurors—5 black and 31 white—were presented to potentially serve on the jury. The State exercised a total of 12 peremptory strikes, and it used 5 of them to strike the five qualified black prospective jurors. Flowers objected, arguing under *Batson* that the State had exercised its peremptory strikes in a racially discriminatory manner. The trial court rejected the *Batson* challenge. Because the trial court allowed the State's peremptory strikes, Flowers was tried in front of an all-white jury. The jury convicted Flowers and sentenced him to death.

On appeal, the Mississippi Supreme Court reversed the conviction, concluding that the State had committed prosecutorial misconduct in front of the jury by, among other things, expressing baseless grounds for doubting the credibility of witnesses and mentioning facts that had not been allowed into evidence by the trial judge. *Flowers*, 773 So. 2d, at 317, 334. In its opinion, the Mississippi Supreme Court described “numerous instances of prosecutorial misconduct” at the trial. *Id.*, at 327. Because the Mississippi Supreme Court reversed based on prosecutorial misconduct at trial,

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the court did not reach Flowers' *Batson* argument. See *Flowers*, 773 So. 2d, at 327.

At the second trial, 30 prospective jurors—5 black and 25 white—were presented to potentially serve on the jury. As in Flowers' first trial, the State again used its strikes against all five black prospective jurors. But this time, the trial court determined that the State's asserted reason for one of the strikes was a pretext for discrimination. Specifically, the trial court determined that one of the State's proffered reasons—that the juror had been inattentive and was nodding off during jury selection—for striking that juror was false, and the trial court therefore sustained Flowers' *Batson* challenge. The trial court disallowed the strike and sat that black juror on the jury. The jury at Flowers' second trial consisted of 11 white jurors and 1 black juror. The jury convicted Flowers and sentenced him to death.

On appeal, the Mississippi Supreme Court again reversed. The court ruled that the prosecutor had again engaged in prosecutorial misconduct in front of the jury by, among other things, impermissibly referencing evidence and attempting to undermine witness credibility without a factual basis. See *Flowers v. State*, 842 So. 2d 531, 538, 553 (2003).

At Flowers' third trial, 45 prospective jurors—17 black and 28 white—were presented to potentially serve on the jury. One of the black prospective jurors was struck for cause, leaving 16. The State exercised a total of 15 peremptory strikes, and it used all 15 against black prospective jurors. Flowers again argued that the State had used its peremptory strikes in a racially discriminatory manner. The trial court found that the State had not discriminated on the basis of race. See *Flowers*, 947 So. 2d, at 916. The jury in Flowers' third trial consisted of 11 white jurors and 1 black juror. The lone black juror who served on the jury was seated after the State ran out of peremptory strikes. The jury convicted Flowers and sentenced him to death.

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On appeal, the Mississippi Supreme Court yet again reversed, concluding that the State had again violated *Batson* by discriminating on the basis of race in exercising all 15 of its peremptory strikes against 15 black prospective jurors. See *Flowers*, 947 So. 2d, at 939. The court’s lead opinion stated: “The instant case presents us with as strong a prima facie case of racial discrimination as we have ever seen in the context of a *Batson* challenge.” *Id.*, at 935. The opinion explained that although “each individual strike may have justifiably appeared to the trial court to be sufficiently race neutral, the trial court also has a duty to look at the State’s use of peremptory challenges *in toto*.” *Id.*, at 937. The opinion emphasized that “trial judges should not blindly accept any and every reason put forth by the State, especially” when “the State continues to exercise challenge after challenge only upon members of a particular race.” *Ibid.* The opinion added that the “State engaged in racially discriminatory practices” and that the “case evinces an effort by the State to exclude African-Americans from jury service.” *Id.*, at 937, 939.

At *Flowers*’ fourth trial, 36 prospective jurors—16 black and 20 white—were presented to potentially serve on the jury. The State exercised a total of 11 peremptory strikes, and it used all 11 against black prospective jurors. But because of the relatively large number of prospective jurors who were black, the State did not have enough peremptory challenges to eliminate all of the black prospective jurors. The seated jury consisted of seven white jurors and five black jurors. That jury could not reach a verdict, and the proceeding ended in a mistrial.

As to the fifth trial, there is no available racial information about the prospective jurors, as distinct from the jurors who ultimately sat on the jury. The jury was composed of nine white jurors and three black jurors. The jury could not reach a verdict, and the trial again ended in a mistrial.

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At the sixth trial, which we consider here, 26 prospective jurors—6 black and 20 white—were presented to potentially serve on the jury. The State exercised a total of six peremptory strikes, and it used five of the six against black prospective jurors, leaving one black juror to sit on the jury. Flowers again argued that the State had exercised its peremptory strikes in a racially discriminatory manner. The trial court concluded that the State had offered race-neutral reasons for each of the five peremptory strikes against the five black prospective jurors. The jury at Flowers’ sixth trial consisted of 11 white jurors and 1 black juror. That jury convicted Flowers of murder and sentenced him to death.

In a divided decision, the Mississippi Supreme Court agreed with the trial court on the *Batson* issue and stated that the State’s “race-neutral reasons were valid and not merely pretextual.” *Flowers v. State*, 158 So. 3d 1009, 1058 (2014). Flowers then sought review in this Court. This Court granted Flowers’ petition for a writ of certiorari, vacated the judgment of the Mississippi Supreme Court, and remanded for further consideration in light of the decision in *Foster*, 578 U. S. 488. *Flowers v. Mississippi*, 579 U. S. 913 (2016). In *Foster*, this Court held that the defendant Foster had established a *Batson* violation. 578 U. S., at 514.

On remand, the Mississippi Supreme Court by a 5-to-4 vote again upheld Flowers’ conviction. See 240 So. 3d 1082 (2017). Justice King wrote a dissent for three justices. He stated: “I cannot conclude that Flowers received a fair trial, nor can I conclude that prospective jurors were not subjected to impermissible discrimination.” *Id.*, at 1172. According to Justice King, both the trial court and the Mississippi Supreme Court “completely disregard[ed] the constitutional right of prospective jurors to be free from a racially discriminatory selection process.” *Id.*, at 1171. We granted certiorari. See 586 U. S. 985.